

26SMCV03642 26SMCV03642

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C09%2F10%2F2026

Source SHA-256: a5eee5bdd877a7cad3ee669ffc810383775528a11ae17a378bcdd53393596079

Case Number: 26SMCV03642 Hearing Date: September 10, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 10, 2026

CASE NUMBER

26SMCV03642

MOTIONS

Demurrer and Motion to Strike Portions of Complaint

MOVING PARTY

Defendant Discovery Talent Services, LLC

OPPOSING PARTY

Plaintiff Lab Rat Productions, Inc.

MOTION

This case arises from an alleged breach of a pay-or-play agreement to narrate spinoffs of the television series Deadliest Catch.

On July 1, 2026, Plaintiff Lab Rat Productions, Inc. f/s/o Mike Rowe ("Plaintiff") filed suit against Defendant Discovery Talent Services, LLC ("Defendant" or "Discovery") alleging a single cause of action for breach of contract.

Discovery now demurs to the Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10, subdivision (e). In the alternative, Defendant moves to strike any and all requests for relief concerning episodes of Deadliest Catch: Bloodline as time barred and any "materially different" internationally aired episodes of the original Deadliest Catch series as inadequately pleaded.

Plaintiff opposes the motion and Discovery replies.

REQUEST FOR JUDICIAL NOTICE

Discovery requests judicial notice
of the following:

Exhibit A: A true and correct copy of Amendment
4D to the Deal Memo for Lab Rat Productions, Inc. f/s/o Mike Rowe for Overall
Personal Services / "Bering Sea Gold," "Deadliest Catch" & Additional
Voiceover Services Outside the Term, dated July 31, 2020 ("Amendment 4D")

Exhibit B: A true and correct copy of the
following web address, as captured on August 10, 2026, showing the air dates of
Deadliest Catch: Discovery GO, Deadliest Catch series page,
<https://go.discovery.com/show/deadliest-catch-discovery>

Exhibit C: A true and correct copy of the
following web address, as captured on August 10, 2026, showing the first
episode air date of Deadliest Catch: Bloodline: TVmaze, Deadliest Catch:
Bloodline Season 1 – Episode List, <https://www.tvmaze.com/seasons/107300/deadliest-catch-bloodline-season-1/episodes>

Exhibit D: A true and correct copy of the
following web address, as captured on August 10, 2026, showing the last episode

air date of Deadliest Catch: Bloodline: TVmaze, Deadliest Catch: Bloodline
Season 3 – Episode List,
<https://www.tvmaze.com/seasons/137135/deadliest-catch-bloodline-season-3/episodes>

Exhibit E: A true and correct copy of the
following web address, as captured on August 10, 2026, showing the episode air
dates of Deadliest Catch: The Viking Returns: Discovery GO, Deadliest Catch:
The Viking Returns series page, <https://go.discovery.com/show/deadliest-catch-the-viking-returns-discovery-atve-us>

Exhibit F: A true and correct copy of the
following web address, as captured on August 10, 2026, announcing the planned
premiere of Deadliest Catch: Northern Edge: Warner Bros. Discovery, Warner
Bros. Discovery's Cable Portfolio Primes Programming Slate With Over 3,000
Premiere Hours Including 225 New and Returning Series (May 13, 2026),
https://press.wbd.com/us/media-release/warner-bros-discoverys-cable-portfolio-primes-programming-slate-over-3000-premiere-0?language_content_entity=en&

Discovery seeks judicial notice
pursuant to Evidence Code section 452, subdivision (h) which provides that
courts may take judicial notice of “[f]acts and propositions that are not
reasonably subject to dispute and are capable of immediate and accurate determination
by resort to sources of reasonably indisputable accuracy.”

The Court is unconvinced that a
private party's contract and/or website is a “source of reasonably indisputable
accuracy” warranting judicial notice under section 452, subdivision (h).

In support of its request that the
Court take judicial notice of the parties' contract, Discovery cites to JPMorgan
Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 754. But there, the agreement at issue was between
JP Morgan Chase and the FDIC, a governmental agency, and the agreement
was posted to the FDIC's website – a governmental website of reasonably
indisputable accuracy. JPMorgan
does not support the contention that courts may properly take judicial notice
of agreements between private parties.

In support of Discovery's request
that the Court take judicial notice of various private websites purportedly
demonstrating the air dates for the episodes in question, Discovery similarly
cites to various cases either involving a governmental entity, or press

publications of which the court took judicial notice that the information had been published, but not the truth of the matters asserted.

While Discovery argues it does not ask the Court to take judicial notice of the truth of the matter asserted, that is precisely what Discovery seeks. Even if the Court were to take judicial notice of the fact that the private websites in question indicated (as captured in recent months) that certain episodes premiered on certain dates, it would be improper for the Court to take judicial notice of the fact that those episodes indeed aired on certain dates, as that would be the truth of the matter asserted.

Therefore, the Court denies Discovery's request for judicial notice in its entirety.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint "with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

FAILURE TO STATE A CAUSE OF ACTION

i.

First Cause

of Action – Breach of Contract

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff.” (Richman v.

Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Here, Plaintiff alleges:

1. Lab Rat Productions, Inc. (“Lab Rat”) is

the loan out company for Mike Rowe (“Rowe”), a well-known television host, writer, narrator, producer, actor, and commercial spokesperson. Rowe has had a close association with the Discovery network for more than two decades, since his breakthrough show Dirty Jobs first aired in 2003. Over the years, Rowe's role has expanded to include, among other things, narrating several Discovery network shows. Rowe has played a significant role in shaping the network's brand identity and drawing millions of viewers with authentic, relatable storytelling that reinforces the network's reputation for compelling, real-world programming.

2. At issue in this action is Discovery

Talent Services, LLC's (“DTS”) refusal to honor an agreement pursuant to which DTS “locked for life” Rowe's services as Narrator for the Discovery show

Deadliest Catch. Pursuant to the “pay-or-play” agreement, for each new episode, DTS must either use Rowe’s services to narrate the episode (play) or compensate Rowe his hourly rate for any new episode DTS does not want him to narrate (pay).

3. DTS made clear in writing that the pay-or-play agreement applied not just to the original Deadliest Catch series, but to all spinoffs of Deadliest Catch. In fact, prior to 2020, DTS expressly “played” Rowe as Narrator pursuant to the pay-or-play agreement in all Deadliest Catch spinoffs, including Deadliest Catch: The Bait and Deadliest Catch: Dungeon Cove. In connection with the former work, DTS specifically said no paperwork was needed when Rowe first started to narrate because Deadliest Catch: The Bait was part of the original Deadliest Catch series and thus covered by the existing Deal Memo. In connection with the later work, DTS sent an email “acknowledging that Dungeon Cove would be treated just like Deadliest Catch, since it is a spinoff.” It was clear from correspondence that DTS considered spinoffs to be part of the Deadliest Catch series, at least where the spinoffs used the Deadliest Catch name in the title.

4. However, unbeknownst to Rowe, beginning in 2020, several other spinoffs of the original Deadliest Catch series were created and Rowe was not cast as Narrator in any of the episodes of any of these spinoffs (the “Spinoffs”). In fact, DTS never even told Rowe about the Spinoffs. These episodes were branded as Deadliest Catch spinoffs rather than entirely new series in order to take advantage of the popularity of Deadliest Catch—a popularity due in part to the popularity of Rowe. By the time the Spinoffs started airing, the original Deadliest Catch series had aired for more than 15 seasons and was one of the Discovery Channel’s flagship franchises.

5. Because DTS chose not to use Rowe’s services as Narrator in the Spinoffs, Rowe is entitled to compensation for DTS’s choice not to “play” him pursuant to the terms of the pay-or-play agreement. By this action, Lab Rat seeks to recover the compensation to which Rowe is due.

A. The Pay-or-Play Agreement.

10. On November 14, 2011, Lab Rat and DTS executed a Deal Memo for Overall Personal Services. (This deal memo, along with

its amendments, are collectively referred to as “the Deal Memo”). The Deal Memo has been amended various times over the years. The Fourth Amendment to the Deal Memo was executed as of June 26, 2013. It contains the following pay-or-play agreement: “[DTS] hereby engages [Lab Rat] on a pay-or-play basis (subject to Artist’s professional availability), and [Lab Rat] hereby accepts such engagement (subject to Artist’s professional availability), to furnish the services of Artist as a narrator for and in connection with episodes produced (if any) of any season of Deadliest Catch produced during the Narration Period.”

11. Under the terms of the original Deal

Memo, Rowe was only locked on a pay-or-play basis for a specified period of time (called the “Narration Period”). But in 2020, the parties agreed that Rowe would be “locked for life.” This is reflected in Amendment 4D, the latest iteration of the Deal Memo. Under the heading “Deadliest Catch & Bering Sea Gold / Lock for Life,” Amendment 4D provides as follows: “Subject to the ‘Lock Conditions’ (defined below), Artist shall be locked as Narrator on a pay-or-play basis to all originally produced episodes of Deadliest Catch and BSG.”

12. The “Lock Conditions” in the Deal Memo

(all of which relate to Rowe’s ability to perform) have at all times been met. As such, under the plain language of the Deal Memo, for all originally produced episodes of Deadliest Catch and BSG, Rowe shall either (a) narrate the episode and be paid (play) or (b) be paid just the same even if Rowe is not the Narrator or if there is no narrator (pay).

13. The pay-or-play agreement in the Deal

Memo applies with equal force to spinoffs of the original Deadliest Catch series. Pursuant to the pay-or-play agreement, Rowe was cast as Narrator in two separate Deadliest Catch spinoffs, Deadliest Catch: The Bait and Deadliest Catch: Dungeon Cove. In connection with Deadliest Catch: The Bait, DTS specifically said no paperwork was needed because it was part of the original Deadliest Catch series and thus covered by the existing Deal Memo. In connection with Deadliest Catch: Dungeon Cove, DTS expressly acknowledged that “Dungeon Cove would be treated just like Deadliest Catch, since it is a spinoff.” For these spinoffs, Lab Rat was paid the Deadliest Catch voiceover rates set forth in the Deal Memo. These rates are different than the rates for other voiceover work Rowe did on other Discovery shows. Specifically, prior to the pay-or-play agreement that attached Rowe for life (rather than just during a specified period), Rowe’s voiceover rates for Deadliest Catch would increase

over time. Typically, increases were based on a specified time periods or as part of renegotiating the Deal Memo. In exchange for the benefits of the pay-or-play agreement attaching him for life to all produced episodes, Rowe agreed to cap his voiceover rates. 14. Not only has DTS admitted that the pay-or-play agreement applies to spinoffs and actually cast Rowe as Narrator in spinoffs pursuant to the pay-or-play agreement, it makes complete sense that the Deal Memo would apply to spinoffs. For the most part, these spinoffs use the original Deadliest Catch series name in the title. This is done specifically to take advantage of the popularity of the original series and the goodwill that has developed in the name; goodwill that Rowe had an integral part in generating over his almost 25 seasons as the Narrator of the series.

B. The Breaches.

15. Lab Rat and Rowe have learned that there are numerous other Deadliest Catch spinoff series for which DTS chose not to cast a Narrator. These include Deadliest Catch: Bloodline (33 episodes), Deadliest Catch: The Viking Returns (10 episodes), and Deadliest Catch: Northern Edge (8 episodes). Lab Rat is informed and believes that these Spinoffs were produced by the same production company that produced Deadliest Catch.

16. Because DTS exercised its choice not to play Rowe in these 51 episodes by crafting episodes that did not use a Narrator, DTS must “pay” Lab Rat for each of these episodes pursuant to the express terms of the pay-or-play agreement in the Deal Memo. DTS has refused to do so. Lab Rat and Rowe have also learned that the episodes of the original Deadliest Catch series that are aired internationally are materially different than the episodes aired in the United States. To the extent any of these international episodes are determined to be “originally produced episodes,” the pay-or-play agreement would apply to those as well.

17. In prelitigation discussions, DTS stated that its understanding of the payor-play provision in the Deal Memo is that the provision only applies when DTS chooses to have a Narrator in the episode. This “understanding” is contrary to (a) the clear and unambiguous language of the Deal Memo and (b) the very definition of a pay-or-play agreement. See *Locke v. Warner Bros.* (1997) 57 Cal.App.4th 354, 358 (“the provision is called ‘pay or play’ BECAUSE IT GIVES THE STUDIO A CHOICE: It can either ‘play’ the director

by using the director's services, or pay the director his or her fee"). DTS contractually "locked" Rowe as Narrator to "all originally produced episodes." None of the Lock Conditions give DTS the ability to avoid the pay-or-play obligation simply by not including a Narrator in a new episode. Stated differently, for DTS's "understanding" of the agreement to be correct, the Deal Memo would need to provide that Rowe was locked to "all originally produced episodes that contain a Narrator." It does not. No such language is contained in the specifically enumerated "Lock Conditions" or anywhere else in the Deal Memo.

18. Furthermore, DTS's argument is barred as a matter of law. "The language of a contract is to govern its interpretation, if the language is clear and explicit, and does not involve an absurdity." Cal. Civ. Code, § 1638. As stated by the California Supreme Court: "If contractual language is clear and explicit, it governs." *Powerline Oil Co., Inc. v. Super. Ct.* (2005) 37 Cal.4th 377, 390. Here, the language of the Deal Memo is clear and unambiguous and, on its face, is not susceptible to any other interpretation. As such, and as a matter of law, its meaning cannot be altered based on DTS's amorphous and undisclosed "understandings." See, e.g., *Winet v. Price* (1992) 4 Cal.App.4th 1159, 1167 ("parol evidence is admissible only to explain a meaning to which the language is 'reasonably susceptible,' not to flatly contradict the express terms of the agreement"). This is particularly true given that DTS has a history of paying Lab Rat for episodes of *Deadliest Catch* in which Rowe was not cast as Narrator, thus debunking DTS's entire argument.

19. The Deal Memo provides that Lab Rat is entitled to payment of \$40,000 for each one hour episode of *Deadliest Catch*. Because DTS exercised its choice not to use Rowe as a Narrator in at least 51 episodes of *Deadliest Catch* spinoffs, Lab Rat is entitled to payment of at least \$2.04 million (plus potentially additional payments for longer episodes).

20. Lab Rat and Rowe only recently learned about the Spinoffs and international episodes. Specifically, in 2025, a dispute arose between Lab Rat and DTS concerning five episodes during Season 21 of the original *Deadliest Catch* series in which DTS did not cast a Narrator. DTS refused to pay Rowe for these episodes even though it had previously paid Rowe for episodes he did not narrate, as required by the pay-or-play agreement. (This is the subject of a separate lawsuit pending in this Court as Case No. 26SMCV02139.)

21. Prior to these disputes with DTS, Lab Rat and Rowe had no reason to question whether DTS was acting in good faith and in compliance with the pay-or-play agreement. Furthermore, Lab Rat and Rowe were not even told about the Spinoffs and the changes to international episodes. As such, Lab Rat and Rowe had no basis to suspect any violations of the pay-or-play agreement. It was only after the incident with Season 21 of Deadliest Catch, and the resulting general loss of trust in DTS, that Plaintiff first undertook its investigation.

23. As described above, DTS and Lab Rat entered into the Deal Memo.

24. Lab Rat and Rowe performed all of the obligations required of them under the Deal Memo.

25. DTS breached the Deal Memo, and the covenant of good faith and fair dealing implied into the Deal Memo, by failing to pay Lab Rat for the Spinoffs and the international episodes of the Deadliest Catch that constitute originally produced episodes in which Rowe was not cast as Narrator.

26. As a direct and proximate result of DCL's breaches, Lab Rat has been damaged in the amount of at least \$2.04 million, plus interest.

(Complaint
¶¶ 1-5, 10-21, 23-26.)

As set forth in the complaint, the Court finds that Plaintiff has alleged: (1) the pay-or-play agreement (Complaint ¶¶ 2-3, 10-14, 23); (2) Plaintiff's performance thereunder (Complaint ¶ 24); (3) Discovery's breaches (Complaint ¶¶ 4-5, 15-21, 25); and (4) resulting damages (Complaint ¶ 26).

Defendant demurs on the grounds that (1) the Deal Memo does not mention or pertain to spinoffs at all; (2) to the extent Plaintiff alleges breaches based on spin-offs, the claim is time barred; and (3) to the extent Plaintiff alleges breaches based off of internationally aired episodes, they are inadequately pled.

Defendant's argument that the contract at issue does not in fact reference spinoffs is premised upon the contract itself, which, as discussed above, the Court declines to take judicial notice of.

Similarly, Defendant's argument that Plaintiff's claims are time barred is premised upon the air dates of which the Court similarly declines to take judicial notice.

Finally, Defendant argues that to the extent Plaintiff's claims are premised on categorizing internationally-aired episodes of Deadliest Catch that are materially different from the episodes that aired in the United States as "originally produced episodes" for which Plaintiff is entitled additional compensation, it is inadequately pled. The Court disagrees.

Plaintiff clearly alleges that the contract entitles Plaintiff to be the narrator on a pay-or-play basis "to all originally produced episodes" (Complaint ¶ 11) and that Defendant breached the agreement with respect to such international episodes (Complaint ¶ 25). The allegations are sufficient at this juncture of the litigation. There is no heightened pleading requirement to allege a breach of contract. [1]

Whether the parties actually agreed that Defendant would compensate Plaintiff as alleged, and whether Defendant actually breached the contract at issue are factual questions to be resolved at later stages of the litigation.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of

the court. (Code Civ. Proc., § 436,
subd. (a)-(b); *Stafford v. Shultz*
(1954) 42 Cal.2d 767, 782.)

Because Defendant's arguments
in connection with the alternative motion to strike are premised upon the same
documents of which the Court declines to take judicial notice, the Court denies
Defendant's motion to strike.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules Defendant's Demurrer and
denies Defendant's Motion to Strike.

Defendant shall file and serve an Answer to the Complaint on or before
September 24, 2026.

Defendant shall provide notice of the Court's ruling and file the
notice with a proof of service forthwith.

DATED: September 10, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] "To survive a demurrer, the complaint need only
allege facts sufficient to state a cause of action. The demurrer admits the truth of all
material facts properly pleaded, including all ultimate facts alleged, but not
contentions, deductions or conclusions of fact or law." (*Simple Avo Paradise Ranch, LLC v.*
Southern California Edison Co. (2024) 102 Cal.App.5th 281, 299, citations
omitted.)

Ultimate facts are those "constituting the cause of
action" or those upon which liability depends, e.g., duty of care, breach of
the duty and causation (damages). (See
Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) "[T]he term ultimate fact generally refers to
a core fact, such as an essential element of a claim. Ultimate facts are

distinguished from evidentiary facts and from legal conclusions.” (Central Valley General Hosp. v. Smith (2008) 162 Cal.App.4th 501, 513 [cleaned up]; see also Rodriguez v. Parivar, Inc. (2022) 83 Cal.App.5th 739, 750–751 [“The elements of a cause of action constitute the essential or ultimate facts in a civil case”].)